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Augsburg Regional Court

Case No.: 112 O 2848/25

IN THE NAME OF THE PEOPLE

In the legal dispute

LVS Hotel & Resorts (€pe) S.A., represented by the directors Arnulf Damerau, Martin Hubert, Laure Muller, and Gilles Schleich, Rue Guillaume Schneider 12, 2522 Luxembourg, Luxembourg
- Plaintiff -

Legal Representatives:
Law Firm **Sonntag & Partner**, Partnership mbB, Schertlinstraße 23, 86159 Augsburg, Reg. No.: 167098_1472627

v.

Bleicher Franz Xaver, Kobelstraße 14a, 86356 Neusäß, currently: James-Cook-Straße 25, 86156 Augsburg
- Defendant -

Legal representative:
Attorney **Tomanke** Konstantin, Luisenstraße 1, 80333 Munich, Case No.: 223/25 T01 kt

regarding repayment under a loan agreement

The Augsburg Regional Court—11th Civil Chamber—composed of Presiding Judge Dr. Mozaffari, Judge Reif, and Judge Folter, based on the oral hearing held on April 15, 2026, issues the following

Conditional Judgment

1. The defendant is ordered to pay the plaintiff the sum of €6,150,000.00, plus interest thereon at a rate of five percentage points above the applicable base rate since January 1, 2025.

2. The defendant shall bear the costs of the litigation.

3. The judgment is provisionally enforceable. The defendant may avert enforcement by the plaintiff

by providing security in the amount of 110% of the amount enforceable under the judgment, unless the plaintiff provides security in the amount of 110% of the amount to be enforced prior to enforcement.

4. The defendant reserves the right to exercise his rights in subsequent proceedings.

Facts

The parties are in dispute over the repayment of a loan in the amount of €6.15 million.

In 2021, the plaintiff intended to acquire a stake in SYNCPILOT SE. A direct acquisition was not possible due to the shareholders' agreement of the shareholders of SYNCPILOT SE dated December 7, 2020, as the then-shareholders were prohibited from transferring shares, either directly or indirectly, until December 31, 2022. Therefore, the plaintiff was to be granted the right to acquire an indirect ownership interest in SYNCPILOT SE through a two-stage acquisition of 10,923 shares in Quintus Beteiligungs GmbH (43.69%) for a total purchase price of €18.75 million. These shares in Quintus Beteiligungs GmbH represented a 15% stake in SYNCPILOT SE.

Against this background, the parties entered into the cooperation and call option agreement at issue on May 21, 2021. In this agreement, the defendant granted the plaintiff two call options (an irrevocable, contractually and in rem offer, conditional upon payment of the option purchase price, to purchase and transfer the shares in Quintus Beteiligungs GmbH):

1. Option: Shares serial nos. 11,251–16,712 at a price of €7.45 million + €50,000 option premium = €7.5 million

2. Option: Shares nos. 16,713–22,173 at a price of €11.15 million + €100,000 option premium = €11.25 million

In return, the plaintiff undertook to grant the defendant an interest-free loan totaling €18.75 million with a term until December 31, 2024. The payment was to be made in six installments. An installment of €0.65 million was already made on April 7, 2021; an installment of €1.5 million was to be paid immediately upon signing; an installment of €1.0 million by May 31, 2021; an installment of €3.5 million by June 30, 2021; a partial payment of €0.85 million on January 30, 2022, and a final partial payment of €11.25 million, also on January 30, 2022. In fact, in addition to the partial payment made on April 7, 2021, €1.5 million was paid on April 29, 2021, €1.0 million on June 7, 2021, and €3.0 million on August 31, 2021. In total, therefore, €6.15 million was paid by the plaintiff to the defendant.

Upon exercise of the call options, the option purchase price was to be set off against the loan claim in lieu of performance. However, the plaintiff did not exercise its option right.

Section 2.5 of the Cooperation and Call Option Agreement provided for a right of tender by the defendant as follows:

> "The Investor and FXB hereby irrevocably agree that, upon the Investor's exercise of the call options, Option Purchase Price 1 and Option Purchase Price 2 shall be set off against the loan claim in lieu of performance. If, at the end of the loan term (December 31, 2024) or upon exit, the call options have not been exercised by the Investor or the loan installments have not been fully paid to FXB, FXB is entitled to offer the Quintus shares to the Investor at a price of €18.80 million ("Tender Price") and, in such a case, the Investor is obligated to acquire the Quintus shares. In this event, the Investor and FXB hereby irrevocably agree to set off the Tender Price against the loan amount paid in full or in part in lieu of performance."

By letter dated April 7, 2026, the defendant exercised the right of tender provided for in Section 2.5 to acquire shares in Quintus Beteiligungs GmbH.

On January 12, 2026, the articles of association of Quintus Beteiligungs GmbH were amended. A general clause for the redemption of shares was newly introduced in § 10(3)(a) of the Articles of Association. Pursuant to this provision, the shareholders may resolve to redeem the shares if a shareholder violates the Articles of Association or his duty of loyalty in such a manner that, in the case of a partnership, his exclusion could be demanded under § 134 HGB. Furthermore, § 11(3) of the Articles of Association now includes a provision regarding the right to compensation such that only 60% of the determined fair market value, or alternatively the lowest amount deemed appropriate in the specific individual case, is paid out as compensation. Neither of these provisions was included in the previous version of the Articles of Association.

Since the conclusion of the cooperation and call option agreement at issue, the ownership structure of SYNPILOT SE has also changed. According to Section 1.8 of the cooperation and call option agreement, BOSYNC Beteiligungs UG and Quintus Beteiligungs GmbH held a combined 41% stake in SYNPILOT SE. This ownership stake has since decreased. As of the date of the extraordinary general meeting on August 5, 2025, BOSYNC Beteiligungs UG still held 24.1% of the shares in SYNPILOT SE. Quintus Beteiligungs GmbH held no shares in SYNPILOT SE at that time.

The plaintiff asserts that the targeted ownership stake of 15% in SYNCPILOT SE, as set forth in Section 1.10 of the Cooperation and Call Option Agreement, cannot be achieved upon payment of the full tender price of €18.8 million. At most, an indirect stake of 8.8% would be possible.

The plaintiff is of the opinion that the claimed loan repayment claim has not been extinguished by the exercise of the put option on April 7, 2026. Furthermore, the defendant can no longer effectively exercise the put option because the agreed-upon date for exercising the put option has been exceeded. In any event, the defendant has since forfeited its right to exercise the put option, as it has not exercised this right for an extended period of time, and the plaintiff has legitimately come to expect that this right will no longer be exercised.

Finally, the plaintiff requests that

> The defendant be ordered to pay the plaintiff an amount of EUR 6,150,000.00, plus interest thereon at a rate of five percentage points above the applicable base rate since January 1, 2025.
>
> In the alternative, in the event that the court finds that the declaration of exercise dated April 7, 2026 precludes the plaintiff’s claim for loan repayment and the action must be dismissed, the action is hereby declared settled.

The defendant moves that

the action be dismissed.

The defendant is of the opinion that the action is inadmissible in the document proceedings due to the multi-part contractual structure, and that the selective fragmentation constitutes an abuse of rights. In any event, the action is unfounded because the loan claim has been extinguished due to the contractually provided set-off against the tender price; alternatively, the set-off against the tender price claim has led to the satisfaction of the claim. This is because the right of tender arose only on December 31, 2024, and has not been forfeited. At the very least, there is a right of retention under § 273 BGB, or alternatively, a right to refuse performance under § 320 BGB. Furthermore, the defendant may assert the defense of dolo agit under § 242 BGB.

During the oral hearing on April 15, 2026, the defendant was granted a two-week deadline to file a response to the plaintiff's new factual arguments set forth in the brief dated April 13, 2026. In the defendant's brief dated April 29, 2026, the defendant, in addition to seeking dismissal of the complaint, moved for the first time, in the alternative, that in the event the court finds a claim for payment to be meritorious, the defendant be ordered to pay only on a step-by-step basis in exchange for the plaintiff's cooperation in the conclusion and execution of the share purchase and transferin accordance with Section 2.5 of the Cooperation and Call Option Agreement dated May 21, 2021 (Exhibit K 1), and, as a further alternative, in the event that the court deems the document-based proceedings admissible and upholds the claim on its merits, to render the judgment subject to the defendant's rights in subsequent proceedings (Section 599 of the German Code of Civil Procedure (ZPO)). Furthermore, the defendant requests that the plaintiff be ordered to bear the costs of the litigation and that enforcement of the judgment be declared provisionally enforceable only upon the provision of security. In the event of a judgment against him, the defendant requests, pursuant to § 712 ZPO, that enforcement be excluded against the provision of security, as enforcement would threaten the defendant with an irreparable disadvantage that cannot be remedied even by subsequent proceedings.

For further details on the facts and the dispute, reference is made to the pleadings exchanged between the parties, together with the accompanying exhibits, as well as to the respective minutes of the oral hearing held on April 15, 2026.

Reasons for the Decision

The admissible action is well-founded.

A.

The action is admissible.

I.

In particular, the Augsburg Regional Court has subject-matter jurisdiction pursuant to § 1 ZPO in conjunction with §§ 23 No. 1, 71(1) GVG and territorial jurisdiction pursuant to §§ 12, 13 ZPO.

II.

In addition, the Civil Division has functional jurisdiction. The Commercial Division does not have jurisdiction. This is because § 95(1)(4d) GVG applies only to disputes under §§ 22, 25 HGB and specifically not to claims arising from a contract governing the acquisition of a commercial business. The acquisition of a commercial enterprise is based on the purchase agreement, and claims under the purchase agreement do not arise from the acquisition of the commercial enterprise pursuant to §§ 22, 25 HGB.

III.

Furthermore, the document-based proceeding is admissible under § 592 ZPO, as the following requirements are met: the action seeks a judgment regarding a claim for performance; this claim concerns the payment of a specific sum of money; the entire basis of the claim is proven by documentary evidence, and the plaintiff has requested the document-based proceedings procedure (see Stein/Berger, 23rd ed. 2018, ZPO § 592, para. 1). Only the legally relevant facts necessary for procedural substantiation must be substantiated by documents, not all facts for which the plaintiff bears the burden of proof. Which facts constitute the basis of the claim and which others are to be regarded as maintaining the claim (replies) must be determined according to the substantive legal basis from which the claim is derived (Stein/Berger, 23rd ed. 2018, ZPO § 592 n. 10). According to § 488(1) sentence 2 BGB, the prerequisites for the creation of a claim for loan repayment are the conclusion of a loan agreement, the disbursement of the loan amount, and the occurrence of the due date. The plaintiff could prove these facts giving rise to legal rights by means of documents, specifically by submitting the cooperation and call option agreement at issue as well as bank statements. Irrespective of this, according to established case law, documentary evidence is dispensable for such assertions that are either expressly admitted (Section 288 of the German Code of Civil Procedure (ZPO)) or, in any event, not disputed (Section 138(3) ZPO) (MüKoZPO/Heiß, 7th ed. 2025, ZPO § 592, para. 26). The facts giving rise to the claim were not disputed in the present case, which is why provability by means of documents is not even relevant.

It is not a prerequisite for the admissibility of the document-based proceeding that the documents in question be simple and not very complex. The law does not provide for any restriction based on the content of the document. The court therefore cannot accept the defendant's objection that the inadmissibility of the document-based proceeding is said to result from the complexity of the contractual structure. Rather, according to the unanimous submissions of the parties, the contractual structure at issue is reflected in its entirety in the cooperation and call option agreement submitted as Exhibit K1 and thus in a document. Contrary to the defendant's view, the plaintiff's claim can be properly assessed under substantive law in the present multi-part contractual structure even without taking into account any counterclaims the defendant may have. For, unlike in the cited judgment of the Federal Court of Justice, the present case does not involve two opposing claims under the law of unjust enrichment arising from the rescission of a void contract, to the assessment of which the net settlement theory applies. Rather, the case involves a contractual claim for loan repayment, against which the defendant may indeed raise defenses that extinguish or suspend the claim, but which do not alter the substantive legal basis of the plaintiff's claim.

Furthermore, the plaintiff's conduct in the document-based proceedings is not to be regarded as an abuse of rights under § 242 BGB. The assertion of claims by way of a document-based proceeding may, in principle, violate § 242 BGB if the expedited procedure of the document-based proceeding is to be abused for purposes unrelated to the proceedings (OLG Hamm, judgment of Oct. 2, 2002 – 13 U 53/02, IBRRS 2003, 0096). In the present case, no purposes unrelated to the proceedings on the part of the plaintiff are apparent. Rather, the legitimate interest in a swift judgment was evident, particularly in light of the application for a preliminary injunction.

B.

The action is also well-founded.

The plaintiff has a claim against the defendant for repayment of the loan granted in the amount of €6.15 million pursuant to § 488(1) sentence 2 BGB.

I.

The claim has arisen. The loan agreement (Section 2.6 of Annex K1) was undisputedly concluded between the parties. The defendant's objection that there was no mention of a loan and that the loan was not the economic core of the agreement, but rather a purely technical financing vehicle, does not hold up. The cooperation and call option agreement at issue constitutes a composite contract in which several contracts that are in themselves independent but economically interrelated form a single unit. Where such a unified contract exists, the respective statutory provisions must be applied separately to the contracts (Guhling/Günter/Makowski, 3rd ed. 2024, BGB before § 535, para. 75). Furthermore, based on the interpretation of the contractual agreement, it must be assumed that there are matching declarations of intent regarding the conclusion of a loan agreement. For if the parties choose a loan structure solely for tax reasons, there is generally no lack of legal intent with regard to the conclusion of a cash loan agreement, because tax law recognition presupposes a valid, seriously intended legal transaction (see BGH, judgment of March 2, 2009 - II ZR 264/07, NZG 2009, 659; MüKoBGB/K.P. Berger, 9th ed. 2023, BGB § 488 para. 2). Since the essentialia negotii of a loan agreement consist solely of the contracting parties, the loan amount, and, if applicable, the interest rate, the fact that the terms of repayment were not specified does not preclude the valid conclusion of the contract.

As a result of the valid conclusion of the contract, a loan amount of €6.15 million was paid out to the defendant. Based on the submitted bank statements and in view of the payments corresponding to the loan installments, the court, in accordance with the plaintiff's submission, assumes that the payments were made toward the loan and not toward any option premiums.

Upon expiration of the contractually agreed loan term, the claim for repayment of the loan provided in the amount of €6.15 million became due on December 31, 2024, pursuant to § 488(1) sentence 2, (3) BGB.

II.

The claim has also not been extinguished by performance.

The defendant's right of tender, as provided for in Section 2.5 of the Cooperation and Call Option Agreement, was not validly exercised by the defendant, so that the tender price is neither to be set off against the loan amount provided in lieu of performance nor can it be offset against it.

1. The effective exercise of the right of tender is precluded by the fact that the right of tender was not exercised in a timely manner. No specific exercise period was agreed upon with respect to the right of tender. It was agreed, however, that the defendant is entitled to tender the company shares to the plaintiff if, at the end of the loan term or upon exit, the call options have not been exercised by the investor. According to the wording, therefore, no deadline for exercise was agreed upon, but rather a specific point in time for exercising the right of tender. The provision in Section 2.5 must be read in conjunction with Section 2.4 of the agreement, which expressly stipulates that the call options may be exercised by the plaintiff at the time of the exit. If the call options are not exercised at that time, the defendant's option to exercise the right of tender at that time takes effect. The maturity date of the loan on December 31, 2024, also constitutes a specific date on which the right of tender may be exercised, provided that the plaintiff has not exercised the call options by that date. A different interpretation of the agreement to the effect that neither an exercise date nor an exercise period was agreed upon does not appear plausible. This would lead to an indefinite binding of the plaintiff to the preliminary agreement for the transfer of the company shares, which cannot be the intended result.

2. Furthermore, the right of tender could no longer be effectively exercised due to an impermissible exercise of rights under § 242 BGB, as it has been forfeited. A right is forfeited if the entitled party fails to assert it over a prolonged period of time, even though they would be capable of doing so ("time element"), and the obligated party, taking into account the entitled party's overall conduct, was entitled to and did assume that the entitled party would not assert their right in the future either ("circumstantial element"; Jauernig/Mansel, 19th ed. 2023, BGB § 242 n. 54; BGH, judgment of July 12, 2016 – XI ZR 564/15, NJW 2016, 3512).

A considerable period of time must have elapsed between the time when the right became enforceable and its actual exercise, during which the entitled party remained inactive. The required duration of this period depends on the circumstances of the individual case (BGHZ 146, 224 et seq.; BGH NZA-RR 2003, 253; NJW 2011, 212). A right of tender is usually exercised within the framework of

This is typically exercised over very short periods of time; contracts generally stipulate a period of just a few weeks. This practice stems from the shareholders' need for legal certainty regarding the ownership structure. Even in this specific case, given the planned extensive cooperation and the amount of the put price, it would have been reasonable to assume that the plaintiff's future ownership interest would be clarified in a timely manner. Although the defendant would have been able to exercise the right of tender after December 31, 2024, he did so only after the longer period of 15 months.

The rights holder must not have taken any action to enforce his right during the period required for forfeiture. Forfeiture is therefore excluded if the entitled party has indicated through a demand, objection, out-of-court dispute, or in any other manner that he insists on his right (BGHZ 132, 84 (95) = NJW 1996, 1756; BeckOK BGB/Sutschet, 77th ed. 1.2.2026, BGB § 242 n. 147). On the defendant's part, the right of tender was first raised in a letter dated October 6, 2025 (Exhibit B12).

In addition to the temporal element, there must also be an element of reliance or circumstance. Upon objective assessment, the obligor must be able to infer from the obligee's conduct that the latter would no longer assert his right. It must therefore be examined whether the obligor was entitled to expect that the obligee would no longer exercise the right, with the result that the belated assertion of the right would constitute a hardship incompatible with good faith for the obligor (BGHZ 25, 47

(52) = NJW 1957, 1358; BeckOK BGB/Sutschet, 77th ed. 1.2.2026, BGB § 242 para. 150). In the case of

Quintus Beteiligungs GmbH, whose shares the plaintiff was to acquire pursuant to the put option, underwent various changes. In particular, at the time of the extraordinary general meeting on August 5, 2025, the ownership structure of SYNCPILOT SE was significantly different from what it had been at the time the cooperation and call option agreement at issue was concluded. It is undisputed that the purpose of the agreement was to establish a specific stake for the plaintiff in SYNCPILOT SE via Quintus Beteiligungs GmbH. A change in the ownership stakes means that the acquisition of the Quintus shares no longer leads to the plaintiff's intended stake in SYNCPILOT SE. From the change in the ownership stakes, the plaintiff could infer that the objective of the agreement

, that the defendant no longer had any interest in the plaintiff's originally planned participation, and that he would therefore no longer exercise his right of tender. Furthermore, with the amendment to the articles of association of Quintus Beteiligungs GmbH, the defendant proposed changes

to the company whose shares the plaintiff was to acquire. Fundamental amendments to the articles of association such as the one at issue here, in particular the inclusion of a general clause for the redemption of shares, constitute an unreasonable hardship for the plaintiff. This is because the late exercise of the right of tender would force her to hold a stake in a company whose articles of association have been amended to the plaintiff's detriment since the agreement on the right of tender was made.

Since, therefore, a factor of circumstance now accompanies the temporal factor, the right of tender is to be regarded as forfeited.

III.

The claim is also enforceable.

1. There is no right of retention under § 320 BGB due to the incomplete disbursement of the loan. Although the obligation to repay is, according to the prevailing view, a primary contractual obligation—because, in addition to the lender's desire for remuneration for his performance in the form of interest, his primary concern is to recover the value he has made available—this obligation does not stand in synallagma to the lender's primary performance
of the lender; rather, only the borrower's obligation to pay interest and the obligation to accept the loan stand in a reciprocal relationship to the granting and retention of the loan (NK-BGB/Krämer, 4th ed. 2021, BGB § 488 n. 11).

2. Nor is the defendant entitled to a right of retention under § 273 BGB against the claim for repayment of the loan based on the defendant's claim to the conclusion of the share purchase agreement, since the defendant has no claim to the conclusion of a share purchase agreement precisely because the right of tender was not validly exercised.

3. For the same reason, the defendant cannot raise the defense of non-performance of the contract under § 320 BGB due to a lack of cooperation in the transfer of shares.

4. Nor does the defense of fraud under § 242 BGB apply, as the defendant cannot immediately reclaim the payment amount. A claim for payment of the tender price will not arise, as the corresponding right of tender was not effectively exercised, as explained above.

IV.

The claim for interest arises from §§ 288(1), 286(1), 2(1) BGB.

C.

The decision on costs is based on § 91(1) of the German Code of Civil Procedure (ZPO).

D.

The decision on provisional enforceability is based on Sections 708(4) and 711 of the German Code of Civil Procedure (ZPO).

The motion to stay enforcement without security pursuant to § 769(1) sentence 2 of the German Code of Civil Procedure (ZPO) was not maintained during the oral hearing, in which only the dismissal of the action was sought. Irrespective of this, the motion would have had no prospect of success, since the issuance of a preliminary injunction under § 769 ZPO requires the filing of a complaint asserting the inadmissibility of enforcement in the cases covered by §§ 767, 768, 771–774, 785, and 786 (BeckOK ZPO/Preuß, 60th ed., March 1, 2026, ZPO § 769). The defendant did not file such a lawsuit, which is why the motion in the present proceedings is unsuccessful.

Nor does the defendant's motion for protection under § 712 ZPO apply, as it is inadmissible. Pursuant to § 714(1) ZPO, the relevant motion must be filed before the conclusion of the oral hearing on which the judgment is to be rendered. At the oral hearing on April 15, 2026, the relevant motion was not filed. New motions on the merits that are raised after the conclusion of the oral hearing are not, however, means of attack and defense within the meaning of § 296a ZPO. They are nevertheless inadmissible (BGH NJW-RR 2009, 853, para. 8), even if the party in question has been granted the right to file a brief, as in the present case (BGH BeckRS 2017, 133092, para. 6; BeckOK ZPO/Bacher, 60th ed., March 1, 2026, ZPO § 296a para. 11). In the absence of a motion filed during the oral hearing, no decision may be made on a substantive motion submitted after the conclusion of the oral hearing (see BGH NJW-RR 2009, 853).

A reopening of the proceedings pursuant to § 156 ZPO was not to be ordered, as the requirements of § 156(2) ZPO were not met. In particular, the court could not find any violation of the right to a fair hearing under § 156(2) sentence 1 ZPO in conjunction with Art. 103(1) GG. To allow the defendant to respond to the plaintiff's brief of April 13, 2026, the defendant was granted a filing period pursuant to § 283 ZPO. However, the defendant could have filed the motion for protection against enforcement, irrespective of the factual arguments in the plaintiff's brief of April 13, 2026, at the latest during the oral hearing. The defendant's fundamental intention to prevent possible enforcement can already be inferred from the motion under § 769 ZPO contained in the answer to the complaint. It is therefore not apparent why the motion under § 712 ZPO could not have been filed in a timely manner.

A reinterpretation of the motion filed in the answer to the complaint is not possible. Although the motion need not be worded verbatim in accordance with §§ 710–712, but must be interpreted appropriately by the court (BeckOK ZPO/Ulrici, 60th ed., Dec. 1, 2025, ZPO § 714, para. 2). However, since the motion was formulated in concrete terms and was clearly directed at the suspension of enforcement without security pursuant to § 769(1) sentence 2 ZPO, there is no room for interpretation.

E.

Pursuant to § 599(1) ZPO, a defendant who has contested the asserted claim is to be reserved the exercise of his rights in cases where he is found liable. The necessary objection arises simply from the fact that a defendant is defending himself against the judgment, for which his motion to dismiss the action is sufficient (OLG Frankfurt a. M., judgment with reservation of rights of July 13, 2018 – 19 U 10/18, BeckRS 2018, 16236).

Notice of Appeal:

An appeal may be filed against this decision. An appeal is admissible only if the value of the matter in dispute exceeds €1,000 or if the court of first instance has allowed the appeal in its judgment.

The appeal must be filed within a strict **one-month** deadline with

the Munich Higher Regional Court
Civil Division in Augsburg
Fuggerstr. 10
86150 Augsburg

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The period begins upon service of the complete decision, at the latest five months after the decision is rendered.

The appeal must be filed in writing by an attorney. The notice of appeal must include the designation of the contested decision and a statement that an appeal is being filed.

The appeal must be substantiated within two months by a written submission from a lawyer. This deadline also begins upon service of the complete decision.

An appeal may be filed against the decision setting the amount in dispute if the value of the matter in dispute exceeds €300 or if the court has permitted the appeal.

The appeal must be filed within **six months** with the

Augsburg Regional Court
Am Alten Einlaß 1
86150 Augsburg

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The period begins when the decision on the merits becomes final or the proceedings are otherwise concluded. If the value in dispute was determined less than one month before the expiration of the six-month period, the appeal may still be filed within one month of service or informal notification of the determination order. In the case of informal notification, the order is deemed to have been served on the fourth day after it was mailed.

The appeal must be filed in writing or by a statement entered into the record at the clerk's office of the aforementioned court. It may also be entered into the record at the clerk's office of any local court; however, the deadline is met only if the record is received by the aforementioned court in a timely manner. Representation by an attorney is not required.

Appeals may also be filed as **electronic documents**. A simple email does not satisfy the legal requirements.

Appeals filed by an attorney, a public authority, or a legal entity under public law—including associations formed by such entities to fulfill their public duties—must be submitted **as an electronic document**, unless this is temporarily impossible for technical reasons. In this case, submission in accordance with the general provisions remains permissible, provided that the temporary impossibility is substantiated at the time of the substitute submission or immediately thereafter. Upon request, the electronic document must be submitted subsequently.

Electronic documents must
- be provided with a qualified electronic signature by the responsible person or
- be signed by the responsible person and submitted via a secure transmission channel.

An electronic document bearing a qualified electronic signature of the responsible person may be transmitted as follows:
- via a secure transmission channel or
- to the court's Electronic Court and Administrative Mailbox (EGVP) established for the receipt of electronic documents.

With regard to secure transmission channels, reference is made to Section 130a(4) of the Code of Civil Procedure. With regard to the further requirements for electronic communication with the courts, please refer to the Regulation on the Technical Framework Conditions for Electronic Legal Transactions and on the Special Electronic Government Mailbox (Electronic Legal Transactions Regulation – ERVV) in its currently applicable version, as well as to the website www.justiz.de.

signed

Dr. Mozaffari	Reif	Folter
Presiding Judge at the Regional Court	Judge at the Regional Court	Judge at the Regional Court

Rendered on May 13, 2026

Signed
Dohnau, JAng, Court Clerk

Certified as a true copy Augsburg,
May 13, 2026

Dohnau, JAng
Clerk of the Court